34.88%; defendant Chiachia Hsu – 15.22%; defendant Yaobin Li – 50%." The First Amended Complaint pleds causes of action for quiet title, reformation and declaratory relief.

On November 12, 2025, Defendants filed their Motion to Expunge Lis Pendens.

Analysis

The purpose of a lis pendens is "to give constructive notice of an action affecting real property to persons who subsequently acquire an interest in that property, so that the judgment in the action will be binding on such persons even if they acquire their interest before the judgment is actually rendered." *Bishop Creek Lodge v. Scira* (1996) 46 Cal.App.4th 1721, 1733. "As a practical matter, the filing of a lis pendens usually clouds the title to the property and prevents its transfer until the litigation is resolved or the lis pendens is expunged." *Malcolm v. Superior Court of Santa Clara County* (1981) 29 Cal.3d 518, 523, fn. 2 (superseded by statute on other point). At any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the Court to expunge the notice. See Code Civ. Proc. § 405.30.

The expungement statutes provide that a lis pendens may be expunged on three grounds: (1) the pleading on which the notice is based does not contain a real property claim (Code Civ. Proc. § 405.31); (2) the claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. § 405.32); or (3) adequate relief can be secured to the claimant by the giving of an undertaking (Code Civ. Proc. § 405.33). See *Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857. Probable validity is met when the Plaintiff establishes her claim by a preponderance of the evidence. Code Civ. Proc., § 405.32.

Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim. *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647 (citing Code Civ. Proc. § 405.30).

Although Defendants concede that the First Amended Complaint pleads a real property claim, Defendants contend that Plaintiff cannot establish the probable validity of the claim. Plaintiff argues, among other things, that allegations of the transfer of the $180,000 from her bank account to the escrow for the subject property is insufficient in light of the recorded state of title.

Opposition papers were filed on April 6, 2026.* The Opposition papers indicate that the parties had come to an agreement that resolves the pending motion. Plaintiff describes the recordation of a "Notice of Withdrawal of Pendency of Action" in reliance on the agreement. In light of the purported agreement and resolution, the parties are ordered to appear on the hearing to confirm that the matter has been resolved by agreement or else discuss resetting the motion for further hearing.

*Although the Opposition papers were filed untimely, the Court, in its discretion, has considered them.

Disposition

The Court finds and orders as follows:

1. **PARTIES TO APPEAR.**

13. 9:00 AM CASE NUMBER: C25-02007
CASE NAME: JUNG CHOI VS. RAMANUJAN GROUP LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RAMANUJAN GROUP LLC
TENTATIVE RULING:

Before the Court is Defendant Ramanujan Group LLC's Demurrer to Complaint. The Complaint alleges three causes of action: (1) breach of contract; (2) intentional interference with contractual relations; and (3) unjust enrichment.

Defendant demurs to each cause of action on the grounds that the complaint fails to state facts sufficient to each cause of action and is uncertain. (Code Civ. Proc. § 430.10(e)-(f)).

Defendant's demurrer is **OVERRULED** as detailed below.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 ("*Doheny*").)

Legal conclusions are insufficient. (*Id*. at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

"Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 citing *Speegle v. Board of Fire Underwriters* (1946) 29 Cal.2d 34, 42.) In reading a complaint in the context of a demurrer, the court gives "the complaint a reasonable interpretation, and read it in context." (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.) The allegations in the complaint must be construed "liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.)

Factual Allegations

Plaintiff Jung Dong Choi is a tenant in Blackhawk Plaza under a Shopping Center Lease originally dated July 25, 2011, amended September 12, 2012, and amended a second time with an Assignment and Assumption Agreement on May 13, 2021 (generally, the "Lease"). (¶ 4, Exs. A-B.) Defendant is the owner and landlord of Blackhawk Plaza. (¶6.) Plaintiff operates a restaurant at the Plaza pursuant to the Lease. (¶ 7.)

Plaintiff alleges that Defendant has failed to follow the terms of the Lease and has interfered with his attempt to sell the restaurant. (¶¶ 8-13.) He asserts several alleged breaches of the Lease including the (1) failure to provide an annual accounting for common area payments, (2) failure to provide marketing activities, and (3) denial of insurance benefits. (*Ibid.*) The failure to approve the assignment discussed below is also alleged as a breach of the Lease.

As to the interference claim, Plaintiff alleges that he decided to sell his restaurant and entered into a sale agreement with a third-party wherein he would sell the restaurant for $300,000. (¶ 8.) Plaintiff alleges that Defendant is improperly interfering with the sale by requiring unreasonable terms before approving the assignment to the third-party buyer. (¶ 13.)

Analysis

Breach of Written Contract

"The standard elements of a claim for breach of contract are '(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (*Wall Street Network, Ltd. V. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178, citations omitted.)

Plaintiff alleges at least four separate breaches of the Lease: the (1) failure to provide an annual accounting for common area payments, (2) failure to provide marketing activities, (3) denial of insurance benefits, and (4) the failure to approve the assignment. Defendant argues those alleged actions violate duties contained in the Lease. As such, Plaintiff has failed to properly assert a breach of contract cause of action.

As to the first alleged breach, Plaintiff asserts that under the Lease he was required to pay a pro rata share of costs associated with maintaining the common areas of the shopping center. These costs were to be paid monthly in advance based on Defendant's estimates, subject to an end-of-year adjustment based on the actual cost of such maintenance. Plaintiff alleges that Defendant has failed to timely reconcile the yearly charges and provide an accounting and/or repayment of any overpayment by Plaintiff. Specifically, he alleges that Defendant "only recently" accounted for the 2021 payments resulting in an approximately $80,000 repayment to Plaintiff. (¶ 10.) No accounting or adjustment has been made for 2022, 2023, 2024, or 2025. (*Ibid.*)

The Lease states, in pertinent part:

> "Tenant's Pro Rata Share of Common Area costs and expenses for each Lease Year shall be paid monthly, in advance, in equal installments in an amount estimated by Landlord from time to time, subject to adjustment after the end of each Lease Year on the basis of the actual cost for such Lease Year." (Lease ¶ 6.2.)

"On a demurrer, the court must consider the sufficiency of the allegations … to determine whether the contract is reasonably susceptible to the plaintiff's alleged interpretation." (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1128.) "So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, [the Court] must accept as correct plaintiff's allegations as to the meaning of the agreement." (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239 quoting *Marina Tenants Assn. v. Deauville Leland E. Burns, Inc.* (1989) 209 Cal.App.3d 860, 866.)

Plaintiff's interpretation of the Lease and his allegations that Defendant has failed to comply with its obligations related to the common area payments reasonable. While the Lease may not use the term 'accounting,' it does provide for a year-end adjustment which would require a review of the actual expenses for the year. The allegations the Defendant provided such an 'accounting' in 2021 but has failed to do so thereafter is sufficient to allege a breach of this term of the Lease.

Plaintiff also alleges that he was required to make payments to Defendant that were to be used by Defendant to market and promote the shopping center. (¶12, 17.) He made the required payments, but Defendant failed to use the money to market and promote the shopping center. (¶ 17-18.) The Lease provides, in pertinent part:

> "Tenant agrees to pay to Landlord, in monthly installments, as Additional Rent, a "Marketing Charge" … [that] will be deposited into the Marketing Fund. … The Marketing Fund ***will be used*** by Landlord only to pay some or all of the costs and expenses for the promotion of the Shopping Center…." (Lease ¶ 3.5 emphasis added.)

Defendant argues that the Complaint "fails to state facts sufficient to constitute this cause of action because Plaintiff fails to identify any action that Defendant failed to perform based on the terms of the Lease but merely sets forth a baseless legal conclusion." (Demurrer at 7:19-21.) This argument fails to acknowledge that the Complaint specifically alleges that "Defendant failed to provide the marketing and other promotional activities that were contemplated by the funds that were paid by Plaintiff." (¶ 18.)

The Lease requires Plaintiff to make payments into a Marketing Fund which "will be used" by the Landlord to pay for marketing expenses. Plaintiff's allegations that he made such payments, and Defendant kept the money but failed to use it for marketing reasonably sets forth a cause of action for breach of the Lease.

Defendant also makes conclusory arguments relating to Plaintiffs alleged breaches pertaining to insurance and failure to approve the assignment of the Lease. "If the complaint states a cause of action under any theory … that aspect of the complaint is good against the demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) If a single breach of the Lease is properly alleged, the demurrer will fail as to the whole cause of action.

In Reply, Defendant raises an argument relating to Plaintiff's purported 'special damages' not being specifically pled. That issue was not raised in the opening papers. "It is elementary that points raised for the first time in a reply brief are not considered by the court." (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1161 quoting *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1486.)

As the Court has determined that at least two of the alleged breaches are sufficiently plead, the Court need not address each of the remaining arguments. Based on the above, Defendant's demur to the first cause of action for breach of contract is **OVERRULED**.

<u>Intentional Interference with Contractual Relations</u>

"The elements of a cause of action for intentional interference with contractual relations are '(1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.'" (*Jenni Rivera Enterprises, LLC v. Latin World Entertainment Holdings, Inc.* (2019) 36 Cal.App.5th 766, 782 quoting *Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 997.)

Defendant's complete argument to this cause of action is that "Plaintiff fails to set forth any facts that establish [1] that a valid contract exists between Plaintiff and a third party, [2] any facts that establish that Defendant's intentional acts were designed to induce a breach or disruption of the contractual relationship, and [3] fails to set forth any facts that support any purported resulting damage." (Demurrer at 9:15-18.)

First, as noted by Plaintiff, the Complaint alleges that Plaintiff "entered into a sale agreement with a prospective buyer pursuant to which his restaurant business would be sold for in excess of $300,000." (¶ 8.) That sufficiently alleges an existing contract between Plaintiff and a third party. The Complaint also alleges that "Defendant approved the prospective buyer," (¶ 27) thereby alleging that Defendant had knowledge of the contract.

In reply, Defendant argues that Plaintiff failed to attach the contract between Plaintiff and the third party. While a lease or assignment thereof may be covered by the statute of frauds, Defendant fails to cite any authority indicating that Plaintiff is required to attach a copy of the underlying contract to his complaint. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "A written contract may be pleaded either by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect." (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489.) Plaintiff's description of the contract is sufficient to allege the existence of the contract.

Second, the Complaint alleges that Defendant failed to reasonably approve the assignment and assumption of Lease but instead attempted to "extract consideration from Plaintiff to which it was not entitled," including requiring Plaintiff to release any and all claims (such as those asserted in this matter) and to assume continuing ongoing liability. (¶¶ 13, 28-29.) The Lease provides that Plaintiff cannot assign or transfer the Lease without Defendant's written approval "which consent shall not be unreasonably withheld or delayed." (Lease ¶ 17.1.) By approving of the prospective buyer but failing to reasonably provide that assignment and assumption of the Lease Defendant's actions have prevented Plaintiff from consummating the sale.

Plaintiff need not allege that the "primary purpose of the defendant's actions was to disrupt the contract." (*Jenni*, supra, 36 Cal.App.5th at 782 citation omitted.) Instead, Plaintiff's allegations must reasonably show that Defendant "knows that the interference is certain or substantially certain to occur as a result of his [or her] action," or in this case inaction. (*Ibid.*)

The Complaint alleges that Defendant knew about the proposed sale and even approved the buyer. However, Defendant has failed to reasonably move forward with approving the assignment and assumption of Lease by improperly attempting to extract improper consideration from Plaintiff to approve the assignment. It is reasonable to infer that Defendant knew that interference with the sale contract "is certain or substantially certain to occur" due to its failure to provide approval of the assignment – since the assignment cannot occur without Defendant's written approval. Whether the withholding of the approval was reasonable is a matter that cannot be determined on demurrer.

Finally, as to damages, the complaint alleges that due to Defendant's actions "has led to the buyer withdrawing from the contract to purchase" Plaintiff's restaurant. (¶ 28.) As a result, Plaintiff has been damaged in excess of $300,000. (¶ 30.) These allegations sufficiently detail the resulting damage.

Based on the above, Defendant's demurrer to the second cause of action for intentional interference with contractual relations is **OVERRULED**.

Unjust Enrichment

Defendant first argues that unjust enrichment is not a cause of action in California, citing *Melchior v. New Line Productions* (2003) 106 Cal.App.4th 779, 793 and *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370. Plaintiff counters citing *Dunkin v. Boskey* (2000) 82 Cal.App.4th 171, 197 and *Hirsch v. Bank of America* (2003) 107 Cal.App.4th 708, 717, 721–722 which indicate that unjust enrichment is a cause of action.

The First District's take on this matter is instructive:

> "[While] there are decisions [finding unjust enrichment is not a cause of action] … this appellate district appears split on the issue. ¶ The point is largely academic because this district has long taken the position that, even if unjust enrichment does not describe an actual cause of action, the term is 'synonymous with restitution,' which can be a theory of recovery. [citations.] This is accepted even by the courts which do not consider unjust enrichment a proper cause of action. [citations.] ¶ Thus, the actual title of plaintiff's [cause of action] cannot be dispositive. This District has also repeatedly accepted that 'there is no particular form of pleading necessary to invoke the doctrine of restitution.'" (*O'Grady v. Merchant Exchange Productions, Inc.* (2019) 41 Cal.App.5th 771, 791-92, numerous internal citations omitted.)

Here, while the third cause of action is titled "Unjust Enrichment," the title is not dispositive. Instead, the Court must look past the title to the substance of the claim. To state a claim for unjust enrichment, as well as for a claim for restitution, the plaintiff must allege receipt of a benefit and unjust retention of the benefit at the expense of another. (*See e.g.*, *Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238; *Tufeld Corp. v. Beverly Hills Gateway, L.P.* (2022) 86 Cal.App.5th 12, 31-32.) The Complaint adequately alleges that Plaintiff made payments to Defendant but received nothing, or less than was required, in return. This sufficiently states a claim for unjust enrichment/restitution.

Defendant next argues that Plaintiff is not entitled to plead a claim for unjust enrichment because he has a claim for breach of contract. As cited by Defendant: "As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract." (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 citing *California Medical Assn. v. Aetna U.S. Healthcare of California, Inc.* (2001) 94 Cal.App.4th 151, 172.)

While that may be a correct statement of the law, it true that a "plaintiff is permitted to plead alternative inconsistent theories." (*Dubin v. Robert Newhall Chesebrough Trust* (2002) 96 Cal.App.4th

465, 477.) As Defendant's authority asserts, a party may seek restitution/unjust enrichment in lieu of breach of contract damages "when the parties had an express contract, but it … is unenforceable or ineffective for some reason." (*Durell,* supra, 183 Cal.App.4th at 1370.) If it is shown that the Lease is unenforceable or ineffective for some reason, Plaintiff would be able to proceed with his claim for unjust enrichment.

Based on that above, Defendant's demur to the third cause of action for unjust enrichment is **OVERRULED**.

Conclusion

Defendant's demurrer to the first, second, and third causes of action is **OVERRULED** in its entirety.

14. 9:00 AM CASE NUMBER: C25-02007
CASE NAME: JUNG CHOI VS. RAMANUJAN GROUP LLC
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF JUNG DONG CHOI'S COMPLAINT**
FILED BY: RAMANUJAN GROUP LLC
****TENTATIVE RULING:****

Before the Court is Defendant Ramanujan Group, LLC's Motion to Strike Portions of Plaintiff Jung Dong Choi's Complaint.

Factual Allegations

See Line 13.

Scope of Motion

Defendant seeks to strike allegations relating to Plaintiff's requests for (1) punitive and exemplary damages, as well as attorney fees, related to the second cause of action for intentional interference with contractual relations, as well as the request for (2) attorney fees related to the third causes of action for unjust enrichment. (See Notice at 2:8-26.)

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. Rules of Court, Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Cal. Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 ["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." (CCP§ 431.10 (b).)